

Court No. - 21

Case :- WRIT - C No. - 1340 of 2023

Petitioner :- Mohd. Zafer

Respondent :- State Of Uttar Pradesh And 6 Others

Counsel for Petitioner :- Mohd. Ayub

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Counsel for the petitioner seeks adjournment.

List as fresh on 23.1.2023.

Order Date :- 16.1.2023

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(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)

Court No. - 21

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Respondent :- State Of Uttar Pradesh And 6 Others

Counsel for Petitioner :- Mohd. Ayub

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Learned counsel for the respondent Corporation seeks time to obtain instructions.

List as fresh on 31.1.2023, showing the name of Sri Pranjali Mehrotra as counsel for the respondent Corporation.

(Vikram D. Chauhan J.) (Manoj Kumar Gupta, J.)

Order Date :- 23.1.2023

Jaideep/-

Court No. - 21

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Respondent :- State Of Uttar Pradesh And 6 Others

Counsel for Petitioner :- Mohd. Ayub

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Sri Pranjal Mehrotra, learned counsel for the respondent Electricity Department seeks two days time to place on record relevant material to show that the provisions relating to assessment was followed in the instant case before issuing the impugned recovery citation.

List as fresh on 6.2.2023.

(Vikram D. Chauhan J.) (Manoj Kumar Gupta, J.)

Order Date :- 31.1.2023

Jaideep/-

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Case :- WRIT - C No. - 1340 of 2023

Petitioner :- Mohd. Zafer

Respondent :- State Of Uttar Pradesh And 6 Others

Counsel for Petitioner :- Mohd. Ayub

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

The petitioner has challenged the demand notice dated 19.11.2020 issued by respondent no.6 and recovery citation dated 28.04.2022 issued by respondent no.5 for recovery of electricity dues in a case of alleged theft of electricity.

Sri Pranjal Mehrotra, learned counsel for the respondent Corporation states that the impugned recovery citation has been withdrawn and that the petitioner will be afforded opportunity of hearing before passing any fresh order.

Accordingly, the petition is disposed of with liberty to the respondents to pass fresh orders after following the procedure laid down in the Electricity Supply Code, 2005.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 6.2.2023

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